

#	Case Name	Tentative
		proposed order as it pertains to any collection efforts related to this court's order of attorney fees and costs. Moving Party shall provide notice of these rulings.
55.		
56.	Bauer v. Likhterman 2021-01214086	The court orders the motion for charging order OFF CALENDAR, as plaintiff has filed an acknowledgment of satisfaction of judgment. (ROA 210).
57.	Baah v. Monetary Inquisition Group LLC 2024-01393282	Plaintiff Alex Baah's motion for reconsideration is DENIED. "It is settled law that a motion for reconsideration is ineffectual if it is filed after entry of judgment" and that Code of Civil Procedure section 1008 "applies only to applications for interim orders." (<i>Marshall v. Webster</i> (2020) 54 Cal.App.5th 275, 281; see <i>Branner v. Regents of University of California</i> (2009) 175 Cal.App.4th 1043, 1048 ["A motion to reconsider is not valid if it is filed after the final judgment is signed"].) "The issue is jurisdictional. Once the trial court has entered judgment, it is without power to grant reconsideration." (<i>APRI Ins. Co. v. Superior Court</i> (1999) 76 Cal.App.4th 176, 181; <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 859, fn. 29 ["After entry of judgment, the superior court [does] not have jurisdiction to entertain or decide a motion for reconsideration"].) Plaintiff shall give notice of this ruling.
58.	Rogers v. Guzman 2023-01301897	The hearing on the claim of exemption by plaintiff / judgment debtor / claimant William Rogers and claimant Celestina M. ("Tina") Rogers, and the opposition by defendants / judgment creditors Angel Lupe Guzman and Arijet Corporation is CONTINUED to August 10, 2026 at 2:00 p.m. in Department C28. First, there is no proof of service of defendants / judgment creditors' Opposition to the Claim of Exemption (ROA 613). (Code Civ. Proc., §§ 703.550, subd. (a), and 703.570, subd. (b).) Second, there is no record that any claim of exemption has been filed with the court. (Code Civ. Proc., §§ 703.550, subd. (a) ["Upon the filing of the copies of the notice of opposition and notice of motion, the levying officer shall promptly file the claim of exemption with the court"], 703.580, subd. (c)

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		["both" the claim of exemption and opposition "shall be received in evidence"].) Defendants / judgment creditors shall file a copy of the claim of exemption, along with any other documents served on defendants / judgment creditors by the levying officer [such as financial statements if applicable], at least five court days prior to the continued hearing date. (Code Civ. Proc., § 703.580, subd. (c) [court's discretion to continue hearing for additional evidence].) Defendants / judgment creditors Angel Lupe Guzman and Arijet Corporation shall give notice to: (1) plaintiff / judgment debtor / claimant William Rogers and claimant Celestina M. ("Tina") Rogers; (2) counsel for plaintiff William Rogers, Robert D. Walters, 1440 N. Harbor Blvd., Suite 900, Fullerton, CA 92835; and (3) the levying officer, Orange County Sheriff's Dept., 909 N. Main Street, Suite 2, Santa Ana, CA 92701.
59.	Ceja v. Volkswagen Group of America, Inc. 2025-01479621	Defendants Volkswagen Group of America, Inc. and Audi South Coast's motion for judgment on the pleadings is DENIED. (Code Civ. Proc. §438, subd. (c).) "A motion for judgment on the pleadings serves the function of a demurrer, challenging only defects on the face of the complaint.' [Citation.] As with a demurrer, '[t]he grounds for a motion for judgment on the pleadings must appear on the face of the complaint or from a matter of which the court may take judicial notice.' [Citations.]" (<i>Eckler v. Neutrogena</i> (2015) 238 Cal.App.4th 433, 439; Code Civ. Proc., § 438, subd. (d); see <i>Hopp v. City of Los Angeles</i> (2010) 183 Cal.App.4th 713, 717 ["A motion for judgment on the pleadings is equivalent to a general demurrer, and the courts treat all properly pleaded material facts in the complaint as true"].) A trial court's determination of a motion for judgment on the pleadings accepts as true the pleading's factual allegations, and it gives them a liberal construction. (<i>Gerawan Farming, Inc. v. Lyons</i> (2000) 24 Cal.4th 468, 515-516.) <u>Cause of Action 5 – Negligent Repair</u> The first amended complaint ("FAC") sufficiently alleges the ultimate facts to state a cause of action for negligent repair. (See FAC ¶¶ 74-77.) Defendants' argument that this claim is barred by the economic loss rule is not persuasive. The duty to use ordinary care in performing repairs to a vehicle is independent of Audi South Coast's contractual duty. The economic loss rule does not apply to bar negligence claims arising from deficient performance of a contract for services.